

Civil Rights Monitoring and Compliance Reviews

Policy: Biennially, each local WIC agency will be reviewed for Civil Rights Compliance. Local agencies are required to understand the procedures for Civil Rights Compliance and Enforcement information.

Regulations: 7 CFR 246.6 (b)(10), 7 CFR 246.8 , FNS Instructions 113-1, Title VI Civil Rights Act of 1964.

Procedure/Additional Guidance:

Pre-award reviews will be conducted on all applicant agencies to determine if they comply with the Title VI Civil Rights Act of 1964. Biennially, each local WIC agency will be reviewed for Civil Rights Compliance. This review will be accomplished during Program monitoring visits and will include the determination of the following items:

- Do all persons have an equal opportunity to participate in the Program regardless of race, color, national origin, sex, age, or disability?
- Have case records been coded by racial/ethnic origin?
- Has the local agency conducted civil rights training for its staff?
- Do project areas display the USDA WIC nondiscrimination poster or an FNS WIC-approved poster?
- Is program information being provided to applicants, participants, grassroots organizations, or similar minority groups?
- Is the nondiscrimination statement being included on all printed materials, such as applications, pamphlets (other than nutrition education), forms, or any other materials distributed to the public?
- Are civil rights complaints being handled in accordance with complaint processing procedures? (see Complaint Processing section)
- Has the local agency corrected all past substantiated civil rights problems or noncompliance situations?
- Are appropriate staff members, volunteers, or other translation resources available in areas where a significant proportion of non-English or limited English-speaking people reside?

In addition, local agencies are required to:

- Record completion of the required annual civil rights training in Compass under Staff Training.
- Log all civil rights complaints and related actions in the Compass Customer Service Log.